

CHAPTER 67*Food and Drugs Amendment Act, 1954***ARRANGEMENT OF SECTIONS***Composition, labelling and precautions against danger to health***Section**

1. Offences in connection with preparation and sale of injurious foods and adulterated drugs.
2. Defences available in proceedings under s. 3 of principal Act.
3. Regulations as to composition of food, etc.
4. Power of Ministers to obtain particulars of certain food ingredients.
5. Labelling, etc., of food and drugs.
6. Regulations as to food hygiene.
7. Catering premises.
8. Amendment of s. 14 of principal Act.
9. Extension of s. 14 of principal Act to other businesses.
10. Licensing of sale of food elsewhere than in premises.
11. Provisions relating to milk.
12. Cream substitutes.

Administration and legal proceedings

13. Food Hygiene Advisory Council.
14. Food and drugs authorities.
15. Supplementary provisions as to food and drugs authorities.
16. Enforcement of certain enactments and regulations.
17. Right of audience in registration proceedings.
18. Repeal of certain administrative provisions of 1950 Act.
19. Powers of sampling.
20. Disposal of samples taken for analysis.
21. Other provisions relating to sampling, analyses, etc.
22. Powers of entry.
23. Powers of Ministers' inspectors.
24. Restriction on movement of imported food.
25. Commencement of proceedings.
26. Penalties and offences by corporations.
27. Contraventions originating in Scotland or Northern Ireland.
28. Further provisions as to restriction of private slaughterhouses.
29. Miscellaneous provisions relating to Board of Trade and their regulations.

Miscellaneous and General

30. Application to Crown.
31. General provisions as to regulations, etc.
32. Expenses.
33. Interpretation.

Section

- 34. Construction with principal Act.
- 35. Application to Northern Ireland.
- 36. Minor and consequential amendments, repeals and savings.
- 37. Short title, citation, commencement and extent.

SCHEDULES:

First Schedule—Provisions as to manner in which samples taken or purchased for analysis are to be dealt with.

Second Schedule—Application of certain provisions of principal Act and this Act to Northern Ireland.

Third Schedule—Minor and consequential amendments.

Fourth Schedule—Repeals.

An Act to amend the Food and Drugs Act, 1938, and the Food and Drugs (Milk, Dairies and Artificial Cream) Act, 1950, and for purposes connected therewith.
[25th November, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Composition, labelling and precautions against danger to health

Offences in connection with preparation and sale of injurious foods and adulterated drugs.

1.—(1) No person shall add any substance to food, use any substance as an ingredient in the preparation of food, abstract any constituent from food, or subject food to any other process or treatment, so as (in any such case) to render the food injurious to health, with intent that the food shall be sold for human consumption in that state.

(2) No person shall add any substance to or abstract any constituent from a drug so as to affect injuriously the quality, constitution or potency of the drug, with intent that the drug shall be sold in that state.

(3) Subject to the provisions of this section, no person shall—

(a) sell for human consumption, offer, expose or advertise for sale for human consumption, or have in his possession for the purpose of such sale, any food rendered injurious to health by means of any operation described in subsection (1) of this section; or

(b) sell, offer, expose or advertise for sale, or have in his possession for the purpose of sale, any drug injuriously

affected in its quality, constitution or potency by means of any operation described in subsection (2) of this section.

(4) A person who contravenes any of the foregoing provisions of this section shall be guilty of an offence.

(5) In determining for the purposes of the principal Act and this Act whether an article of food is injurious to health, regard shall be had not only to the probable effect of that article on the health of a person consuming it but also to the probable cumulative effect of articles of substantially the same composition on the health of a person consuming such articles in ordinary quantities.

(6) In proceedings under this section for an offence consisting of the advertisement for sale of any food or drug, it shall be a defence for the person charged to prove that, being a person whose business it is to publish, or arrange for the publication of, advertisements, he received the advertisement for publication in the ordinary course of business.

(7) Sections one and two of the principal Act shall cease to have effect; and any reference in that Act to those sections shall be construed as a reference to this section.

2.—(1) In proceedings under section three of the principal Act for an offence consisting of the sale of food to which any substance has been added, or in the preparation of which any substance has been used as an ingredient, or from which any constituent has been abstracted, or which has been subjected to any other process or treatment, other than food thereby rendered injurious to health, it shall be a defence for the person charged to prove that the operation in question was not carried out fraudulently, and that the article was sold having attached thereto a notice of adequate size, distinctly and legibly printed and conspicuously visible, stating explicitly the nature of the operation, or was sold in a wrapper or container displaying such a notice.

Defences
available in
proceedings
under s. 3 of
principal Act.

(2) The provisions of the foregoing subsection shall apply in relation to proceedings for an offence consisting of the sale of a drug to which any substance has been added, or from which any constituent has been abstracted, other than a drug thereby injuriously affected in its quality, constitution or potency, as they apply in relation to any such offence as is therein mentioned.

(3) Paragraphs (1) to (3) and paragraph (5) of section four of the principal Act, and section five of that Act, shall cease to have effect; and any reference in that Act to the said section four shall be construed as including a reference to this section.

Regulations
as to
composition
of food, etc.

3.—(1) The Ministers may, so far as appears to them to be necessary or expedient in the interests of the public health, or otherwise for the protection of the public, make regulations for any of the following purposes:—

- (a) for requiring, prohibiting or regulating the addition of any specified substance, or any substance of any specified class, to food intended for sale for human consumption or any class of such food, or the use of any such substance as an ingredient in the preparation of such food, and generally for regulating the composition of such food;
- (b) for requiring, prohibiting or regulating the use of any process or treatment in the preparation of any food intended for sale for human consumption, or any class of such food;
- (c) for prohibiting or regulating the sale, possession for sale, offer or exposure for sale, consignment or delivery of food which does not comply with any of the regulations, or in relation to which an offence against the regulations has been committed or would have been committed if any relevant act or omission had taken place in England and Wales, or the importation of any such food as aforesaid;
- (d) for prohibiting or regulating the sale, possession for sale, or offer, exposure or advertisement for sale, of any specified substance, or of any substance of any specified class, with a view to its use in the preparation of food for human consumption, and the possession of any such substance for use in the preparation of food intended for sale for human consumption.

(2) In the exercise of their functions under this section the Ministers shall have regard to the desirability of restricting, so far as practicable, the use of substances of no nutritional value as foods or as ingredients of foods.

(3) Regulations made under this section may apply to cream, and to any food containing milk; but except as aforesaid such regulations shall not apply to milk.

(4) Regulations so made may provide, in relation to such cases as may be specified and subject to such exceptions as may be allowed by or under the regulations, that where any food is certified by a public analyst as being food to which the regulations apply so far as they are made under paragraph (c) of subsection (1) of this section that food may be treated for the purposes of section ten of the principal Act (which enables food

to be seized and condemned on the order of a magistrate) as being unfit for human consumption :

Provided that nothing in any such regulations shall be taken as prejudicing the generality of the powers conferred by the said section ten.

(5) Subject to the provisions of section thirty-six of this Act, the following provisions of the principal Act shall cease to have effect, that is to say, subsection (2) of section three, paragraph (a) of the proviso to section four, section seven, so much of sections eight and thirty as enables regulations to be made for the purposes authorised by this section, section thirty-one, subsection (1) of section thirty-two, section thirty-six, and Part IV.

4.—(1) For the purpose of enabling them to exercise their functions under the last foregoing section, the Ministers may by order require every person who at the date of the order or at any subsequent time carries on a business which includes the production or importation or use of substances of any class specified in the order to furnish to the Minister, within such time as may be so specified, such particulars as may be so specified of the composition and use of any such substance sold in the course of that business for use in the preparation of food for human consumption, or used for that purpose in the course of that business.

Power of Ministers to obtain particulars of certain food ingredients.

(2) Without prejudice to the generality of the foregoing subsection, an order made thereunder may require the following particulars to be furnished in respect of any substance, that is to say—

- (a) particulars of the composition and chemical formula of the substance ;
- (b) particulars of the manner in which the substance is used or proposed to be used in the preparation of food ;
- (c) particulars of any investigations carried out by or to the knowledge of the person carrying on the business in question for the purpose of determining whether and to what extent the substance, or any product formed when the substance is used as aforesaid, is injurious to or in any other way affects health ;
- (d) particulars of any investigations or inquiries carried out by or to the knowledge of the person carrying on the business in question for the purpose of determining the cumulative effect on the health of a person consuming such substance in ordinary quantities.

(3) No particulars furnished in accordance with an order under this section, and no information relating to any individual business obtained by means of such particulars, shall, without the

previous consent in writing of the person carrying on the business in question, be disclosed except—

(a) in accordance with directions of the Minister, so far as may be necessary for the purposes of the last foregoing section or of any corresponding enactment for the time being in force in Scotland or Northern Ireland;

(b) for the purposes of any proceedings for an offence against the order or any report of those proceedings,

and if any person discloses any such particulars or information in contravention of this subsection he shall be liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds or both, or on conviction on indictment to imprisonment for a term not exceeding two years or to a fine not exceeding five hundred pounds or both.

(4) Section fifty-one of the Patents Act, 1949 (which secures inventions against anticipation in certain cases), shall apply in relation to the disclosure of any invention made in pursuance of an order under this section, and to anything done in consequence of any such disclosure, as it applies in relation to such communications of inventions as are therein mentioned, and to anything done in consequence of such communications.

Labelling, etc.
of food and
drugs.

5.—(1) In proceedings for an offence under section six of the principal Act (which penalises the use of labels and advertisements which falsely describe any food or drug or are calculated to mislead as to the nature, substance or quality of any food or drug) the fact that a label or advertisement in respect of which the offence is alleged to have been committed contained an accurate statement of the composition of the food or drug shall not preclude the court from finding that the offence was committed.

(2) It is hereby declared that for the purposes of the said section six, a label or advertisement which is calculated to mislead as to the nutritional or dietary value of any food is calculated to mislead as to the quality of the food.

(3) Without prejudice to the provisions of the said section six, but subject to the next following subsection, the Ministers may make regulations for imposing requirements as to, and otherwise regulating, the labelling, marking or advertising of food intended for sale for human consumption and the descriptions which may be applied to such food.

(4) In relation to the labelling and marking of food with respect to weight, measure and number, the last foregoing subsection shall apply with the substitution for the reference to the Ministers of a reference to the Board of Trade.

(5) Regulations made under subsection (3) of this section may make provision for any purpose authorised by paragraph (c) of subsection (1) of section three of this Act in the case of regulations under that section.

(6) Regulations made under the said subsection (3) may apply to cream, and to any food containing milk ; but except as aforesaid such regulations shall not apply to milk.

(7) Subject to the provisions of section thirty-six of this Act, the following provisions of the principal Act shall cease to have effect, that is to say, paragraph (b) of subsection (1) of section eight, so much of subsection (3) of that section as relates to that paragraph, subsection (2) of section thirty-two, and section thirty-three.

6.—(1) The Ministers may make such regulations as appear to them to be expedient for securing the observance of sanitary and cleanly conditions and practices in connection with the sale of food for human consumption or the importation, preparation, transport, storage, packaging, wrapping, exposure for sale, service or delivery of food intended for sale or sold for human consumption, or otherwise for the protection of the public health in connection with the matters aforesaid. Regulations as to food hygiene.

(2) Without prejudice to the generality of the foregoing subsection, regulations made by the Ministers may make provision—

- (a) for imposing requirements as to the construction, layout, drainage, equipment, maintenance, cleanliness, ventilation, lighting, water supply and use of premises in, at or from which food is sold, or offered, exposed, stored or prepared for sale for human consumption (including any parts of such premises in which apparatus and utensils are cleansed, or in which refuse is disposed of or stored) ;
- (b) for imposing requirements as to the provision, maintenance and cleanliness of sanitary and washing facilities in connection with such premises, the disposal of refuse and the maintenance and cleanliness of apparatus, equipment, furnishings and utensils used in such premises, and in particular for imposing requirements that every sanitary convenience situate in such premises shall be supplied with water through a suitable flushing appliance ;
- (c) for prohibiting or regulating the use of any specified materials, or of materials of any specified class, in the manufacture of apparatus or utensils designed for use in the preparation of food for human consumption, and the sale or importation for sale of apparatus or utensils designed as aforesaid and containing such materials ;

- (d) for prohibiting spitting on premises where food is sold or offered, exposed, stored or prepared for sale for human consumption (including any parts of such premises in which apparatus and utensils are cleansed);
- (e) for imposing requirements as to the clothing worn by persons in such premises;
- (f) for securing the inspection of animals intended for slaughter and of carcasses of animals for the purpose of ascertaining whether meat intended for sale for human consumption is fit for such consumption;
- (g) for requiring the staining or sterilisation in accordance with the regulations of meat which is unfit for human consumption, or which is derived from animals slaughtered in knackers' yards or from carcasses brought into such yards, or which, though not unfit for human consumption, is not intended therefor;
- (h) for regulating generally the treatment and disposal of any food unfit for human consumption;
- (i) for prohibiting or regulating, or enabling local authorities to prohibit or regulate, the sale for human consumption, or the offer, exposure or distribution for sale for human consumption, of shellfish taken from beds or other layings for the time being designated by or under the regulations.

(3) In the last foregoing subsection "animals" includes poultry.

(4) Regulations under this section may make different provisions in relation to different classes of business; and without prejudice to the foregoing provisions of this section or of section ninety-two of the principal Act, any such regulations imposing requirements in respect of premises may—

- (a) impose on the occupier of the premises and, in the case of requirements of a structural character, on any owner of the premises who either lets them for use for a purpose to which the regulations apply or permits them to be so used after notice from the authority charged with the enforcement of the regulations, responsibility for compliance with those requirements;
- (b) provide, subject to such limitations and safeguards as may be specified, for conferring, in relation to particular premises, exemptions from the operation of specified provisions contained in regulations made for the purposes of paragraph (a) or paragraph (b) of subsection (2) of this section while there is in force a certificate of the local authority to the effect that

compliance with those provisions cannot reasonably be required with respect to the premises or any activities carried on there.

(5) If any person who has incurred, or is about to incur, expenditure in securing that the requirements of regulations made under this section, being requirements of a structural character, are complied with in respect of any premises owned or occupied by him claims that the whole or any part of the expenditure ought to be borne by any other person having an interest in the premises, he may apply to the county court, and the court may make such order concerning the expenditure or its apportionment as appears to the court, having regard to all the circumstances of the case, including the terms of any contract between the parties, to be just and equitable; and any order made under this section may direct that any such contract as aforesaid shall cease to have effect in so far as it is inconsistent with the terms of the order.

(6) Regulations made under this section may impose in respect of accommodation in home-going ships, and in respect of vehicles, stalls and places other than premises, any such requirements as may be imposed thereunder in respect of premises.

(7) Subject as hereinafter provided, references in this section to food shall be construed as references to food other than milk:

Provided that—

- (a) regulations under this section relating to importation may apply to milk; and
- (b) any regulations under this section may apply to any food containing milk.

(8) The Ministers shall from time to time take such steps as they think expedient for publishing codes of practice in connection with matters which may be made the subject of regulations under this section, for the purpose of giving advice and guidance to persons responsible for compliance with such regulations.

(9) Subject to the provisions of section thirty-six of this Act, the following enactments shall cease to have effect, that is to say, so much of sections eight and thirty of the principal Act as enables regulations to be made for purposes authorised by this section, section thirteen of that Act (except so much of subsection (6) as relates to the construction of section fourteen), and paragraph (k) of subsection (1) of section one of the 1950 Act.

7.—(1) Where a person is proceeded against by a local Catering authority for an offence against regulations made under section premises. six of this Act in respect of any premises used as catering premises or of any business carried on at such premises, the following provisions of this section shall have effect.

(2) If the person is convicted of the offence, the court may if it thinks it expedient so to do having regard to the gravity of the offence or (in the case of an offence committed in respect of premises) to the unsatisfactory nature of the premises, or to any offences against regulations made under section six of this Act of which the person has previously been convicted, on the application of the local authority make an order disqualifying that person from using those premises as catering premises for such period not exceeding two years as may be specified in the order:

Provided that an order under this section shall not be made against any person unless the local authority have, not less than fourteen days before the date of the hearing, given that person written notice of their intention to apply for an order to be made against him.

(3) A person subject to an order under this section shall be guilty of an offence if, while the order is in force—

(a) he uses the premises to which the order relates as catering premises, or

(b) he participates in the management of any business in the course of which the premises are so used by another person.

(4) A person so subject may, at any time after the expiration of six months from the date on which the order came into force and from time to time thereafter, apply to the court before which he was convicted or by which the order was made to revoke the order, and on any such application the court may, if it thinks proper having regard to all the circumstances of the case, including in particular the person's conduct subsequent to the conviction and any improvement in the state of the premises to which the order relates, grant the application.

(5) If an application under the last foregoing subsection is refused by the court to which it is made, a further application thereunder shall not be entertained if made within three months after the date of the refusal.

(6) The court to which an application under the said subsection is made shall have power to order the applicant to pay the whole or any part of the costs of the application.

Amendment
of s. 14 of
principal Act.

8.—(1) Any application for the registration of premises under section fourteen of the principal Act (which provides for the registration of premises used for or in connection with the manufacture and sale of ice-cream, sausages and certain preserved foods) shall specify the purpose or purposes described in subsection (1) of that section for which registration is applied for, and all rooms or accommodation in the premises proposed to be used for such purposes; and the premises to be registered

under that section in pursuance of such an application shall not include any room or accommodation not specified in the application.

(2) It is hereby declared that the same premises may be registered under the said section fourteen for more than one purpose described in subsection (1) of that section, and that different parts of the same premises may be so registered for different purposes so described.

(3) For subsection (3) of the said section fourteen there shall be substituted the following subsection:—

“(3) If in the case of any premises in respect of which an application for registration is made under this section, or which are registered under this section, it appears to the local authority—

(a) that the requirements of regulations in force under section six of the Food and Drugs Amendment Act, 1954, are not complied with in connection with the premises or the business carried on at the premises, or

(b) that the premises or any part of the premises are otherwise unsuitable (having regard to considerations of hygiene and in particular to the situation, construction or condition of the premises, or to any activities carried on therein) for use for the purpose or purposes specified in the application, or for which they are used, as the case may be,

the authority may serve on the said applicant or occupier a notice stating the place and time, not being less than twenty-one days after the date of the service of the notice, at which they propose to take the matter into consideration and informing him that he may attend before them, with any witnesses whom he desires to call, at the place and time mentioned to show cause why the authority should not, for reasons specified in the notice, refuse the application or, as the case may be, cancel the registration of the premises.”

(4) For subsection (7) of the said section fourteen there shall be substituted the following subsections:

“(7) Nothing in this section shall be taken as requiring the registration thereunder of premises used wholly or mainly—

(a) as catering premises, or

(b) as a school or club ;

and paragraph (a) of subsection (1) of this section shall not apply in relation to the sale or storage of ice-cream at any premises used as a theatre, cinematographic theatre, music hall or concert hall.

(7A) In this Act the expression 'catering premises' means premises where, in the course of a business, food is prepared and supplied for immediate consumption on the premises."

(5) Subsections (8) and (9) of the said section fourteen (which provide for the suspension of that section, until declared in force by the Minister of Health, in any district in which corresponding local Act provisions were in force at the commencement of the principal Act, and for the repeal of such provisions) shall have effect as if for references to the Minister of Health there were substituted references to the Minister, and as if after the words "this section", in the second place where those words occur in the said subsection (8), there were inserted the words "so far as it relates to registration for purposes regulated by the local Act provisions".

Extension of
s. 14 of
principal Act
to other
businesses.

9.—(1) The Ministers may by order direct that section fourteen of the principal Act shall have effect as if the purposes described in subsection (1) of that section included, except in such cases as may be prescribed by the order, the sale or preparation for sale of food for human consumption, or the storage of food intended for such sale, in the course of any business of a class specified in the order.

(2) Any order made under this section—

- (a) shall make provision for enabling premises used, for purposes for which registration is required by virtue of the order to be registered under the said section fourteen before the date when subsection (1) of that section becomes applicable to them by virtue of the order, and
- (b) in relation to premises used for those purposes before that date, shall make provision for excluding or restricting the power of the local authority to refuse applications for registration.

(3) The purposes for which registration is required by virtue of an order made under this section may include any purposes for which, apart from the order, registration would be required under the said section fourteen; and any such order may repeal, in whole or in part, paragraph (a) or (b) of subsection (1) of the said section fourteen, and may make provision for continuing in force the registration of any premises for purposes to which the order applies.

Where an order made under this section repeals the whole or any part of the said paragraphs, section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals), shall apply as if the order were an Act.

(4) In relation to the registration of premises for purposes for which registration is required by virtue of an order under this section, subsection (8) of the said section fourteen shall have effect as if for the reference to the commencement of the principal Act there were substituted a reference to the date on which premises become registrable by virtue of the order.

(5) Subsection (4) of section ninety-two of the principal Act (which provides for consultation with representative organisations before making regulations under that Act) shall apply to any order under this section as it applies to regulations under that Act.

10.—(1) Subject to the provisions of this section, the Ministers may make regulations providing—

Licensing
of sale of food
elsewhere than
in premises.

- (a) for the issue by local authorities of licences in respect of the use of vehicles, stalls or places other than premises for the preparation, exposure or offer for sale or sale of food for human consumption, and
- (b) for prohibiting the use for any such purpose of any such vehicle, stall or place except in accordance with a licence issued under the regulations.

(2) Regulations under this section may be made so as to apply either generally or to such class or classes of business as may be specified in the regulations, and may exempt from the provisions of section fourteen of the principal Act any premises used for the storage of food intended for sale for human consumption in the course of a business in respect of which a licence is in force under the regulations.

(3) Regulations made under this section may provide for the refusal or cancellation of a licence under the regulations, either wholly or in respect of a part of the business for which the licence is applied for or is held,—

- (a) where the applicant or holder is unable or has failed to comply, in relation to that business, with any byelaws in force under section fifteen of the principal Act, or
- (b) where the requirements of regulations in force under section six of this Act are not complied with in relation to that business ;

and such regulations shall make provision for affording to persons affected by any such refusal or cancellation an opportunity to make representations to the local authority, and to appeal from the decision of that authority to a magistrates' court.

(4) If on the coming into operation of any regulations under this section in relation to any class of business local Act provisions are in force in any district, being provisions under which

persons engaged in that class of business are required to be licensed or registered, the regulations so far as they relate to that class of business shall not apply to that district until such date as may be appointed by an order made by the Minister upon application in that behalf made by the local authority.

(5) Where an order is made in relation to any district under subsection (4) of this section, that order—

- (a) may repeal any such local Act provisions as are mentioned in that subsection so far as they relate to that district and to the class of business in relation to which the regulations under this section have effect, and
- (b) shall provide for securing that persons licensed or registered under those provisions are, in relation to any business of the said class in which they are engaged, treated as licensed under the regulations.

Provisions
relating to
milk.

11.—(1) Milk and Dairies Regulations made under section one of the 1950 Act may provide (subject to such exceptions as may be allowed by or under the regulations)—

- (a) for requiring cream or separated milk to be subjected to a specified treatment before being sold for human consumption ;
- (b) for prohibiting or restricting the sale for human consumption, as milk of any specified description (being a description which in the opinion of the Ministers making the regulations ascribes to the milk a quality higher than the minimum quality prescribed for milk under section ten of the said Act), of milk containing less than a specified quantity of any specified normal constituent ;
- (c) for prohibiting the sale for human consumption of milk obtained from cows milked—
 - (i) at any stage of a journey to or from a dairy farm,
 - (ii) at a slaughterhouse or knacker's yard, or
 - (iii) in any market or other place where cattle are collected for the purposes of sale or showing, whether or not the market or place is registered in pursuance of regulations made under that Act as a dairy farm ;
- (d) for requiring any milk to which regulations in force under the last foregoing paragraph apply to be stained or otherwise treated for the purposes of identification ;

(e) for prohibiting the use of milk churns (whether by the persons to whom they belong or other persons) otherwise than as containers for milk, where the churns are in use for the purposes of the business of a dairyman.

(2) Paragraph (a) of the foregoing subsection so far as it relates to cream shall be without prejudice to the power of the Ministers under section three of this Act to make regulations applying to cream.

(3) Regulations made for the purposes of paragraph (b) of subsection (1) of this section shall not apply to cream so far as made for the purpose for which regulations relating to cream may be made under section three of this Act; and so much of subsection (1) of section one of the 1950 Act as defines "milk" for the purposes of that subsection shall not apply to regulations made for the purposes of paragraph (d) of the said subsection (1).

(4) Milk and Dairies Regulations made for the purposes of section two or section three of the 1950 Act (which relate to the registration of dairymen, dairies, dairy farms and dairy farmers) may make special provision—

(a) for the registration of premises used temporarily as dairies or dairy farms, and of the occupiers of such premises;

(b) for the removal from the register of such premises and occupiers at the expiration of the period for which the registration is effected;

and in relation to regulations made by virtue of this subsection with respect to premises used as dairy farms, section seven of the said Act (which relates to the enforcement of Milk and Dairies regulations) shall have effect as if any reference therein to persons carrying on or proposing to carry on the trade of a dairy farmer included a reference to the occupiers of the premises:

Provided that the First Schedule to the said Act (which contains provisions with respect to the refusal and cancellation of registration of dairymen, dairy farms and dairy farmers) shall not apply to registration in pursuance of regulations made by virtue of this subsection or to persons registered or applying to be registered thereunder.

(5) For the purposes of paragraph (c) of subsection (1) of section nine of the 1950 Act (which prohibits a person from selling adulterated milk or having it in his possession for the purpose of sale) a person shall be deemed to retain the possession of milk which is deposited in any place for collection until it is actually collected; but nothing in this subsection shall be taken as affecting anything in subsection (2) of section seventy-one of

the principal Act (which provides a defence on a charge in respect of milk of which a sample is taken after the milk has left the defendant's possession).

Cream
substitutes.

12.—(1) Subject to the provisions of this section, no person shall sell, or offer or expose for sale, for human consumption—

(a) any substance which resembles cream in appearance, but is not cream, or

(b) any article of food containing such a substance, under a description or designation which includes the word "cream" (whether or not as part of a composite word).

(2) The foregoing subsection shall not apply to the sale, or offer or exposure for sale, of any substance being reconstituted or imitation cream as defined by this section, or of any article containing such a substance, under a description or designation which identifies the substance as such, or to the sale, or offer or exposure for sale, of any substance under a description or designation which indicates that the substance is not for use as, or as a substitute for, cream.

(3) In this section "reconstituted cream" means a substance which, not being cream, resembles cream in appearance and contains no ingredient not derived from milk, except—

(a) water, or

(b) ingredients (not added fraudulently to increase bulk, weight or measure, or conceal inferior quality) which may lawfully be contained in a substance sold for human consumption as cream ;

and "imitation cream" means a substance which, not being cream or reconstituted cream, resembles cream in appearance and is produced by emulsifying edible oils or fats with water, with or without other substances not prohibited by regulations made for the purposes of this section under section three of this Act, or added in quantities so prohibited.

(4) For the purposes of this section, the description or designation under which a substance or article is sold, or offered or exposed for sale, shall be deemed to include the word "cream" if it includes any other word (composite or otherwise) which is calculated to lead a purchaser to suppose that the substance is or, as the case may be, the article contains either cream or a substance for use as cream.

(5) A person who contravenes subsection (1) of this section shall be guilty of an offence.

(6) It shall be the duty of every food and drugs authority within their area to carry into execution and to enforce the provisions of this section.

(7) Section twenty-nine of the 1950 Act shall cease to have effect.

Administration and legal proceedings

13.—(1) There shall be constituted a Council, to be called ^{Food} the Food Hygiene Advisory Council, which shall consist of a ^{Hygiene} chairman appointed by the Ministers and such number of other ^{Advisory} members so appointed as the Ministers may determine. ^{Council.}

(2) The members of the said Council so appointed shall include—

- (a) persons appearing to the Ministers to be qualified to represent the interests of the public generally in relation to matters of food hygiene and related matters,
- (b) persons appearing to the Ministers to be representative of persons carrying on any of the classes of trade or business affected by the operation in relation to food of the Food and Drugs Acts, 1938 to 1954, and
- (c) persons appearing to the Ministers to be representative of workers employed in any of the said classes of trade or business ;

and the terms of their appointment shall be such as the Ministers may determine.

(3) The Ministers or either of them may from time to time refer to the said Council for consideration or advice such questions as they think fit, being questions relating to the Food and Drugs Acts, 1938 to 1954, as they apply in relation to food.

(4) Without prejudice to the last foregoing subsection, where the Ministers propose to make—

- (a) any regulations under section five (labelling, marking, and advertising of food), section six (food hygiene), or section ten (licensing of vehicles, etc.) of this Act, or
- (b) any order under section nine of this Act (extension of registration),

or to publish any such code of practice as is mentioned in subsection (8) of section six of this Act, they shall (unless it appears to them to be inexpedient to do so having regard to the urgency of the matter) refer the proposals in the form of draft regulations or a draft code of practice or a draft order, or otherwise, to the Food Hygiene Advisory Council for consideration and advice.

(5) The Minister may, out of moneys provided by Parliament, pay to the chairman and other members of the Food Hygiene Advisory Council, and to persons attending meetings at the request of the Council, such allowances as he may, with the approval of the Treasury, determine in respect of travelling and subsistence expenses and in respect of other expenses (if any) necessarily incurred by them for the purpose of enabling them to discharge their functions as members of the Council.

(6) Nothing in this section shall be taken as prejudicing the effect of subsection (4) of section ninety-two of the principal Act.

Food and
drugs
authorities.

14.—(1) Subject to the provisions of this section, the food and drugs authorities for the purposes of the principal Act, the 1950 Act and this Act shall be as follows, that is to say—

- (a) for the City of London, the common council ;
- (b) for every county borough or metropolitan borough, the council of the borough ;
- (c) for every non-county borough or urban district, being a borough or district of which the population, according to the last published census for the time being, is forty thousand or upwards, the council of the borough or district ; and
- (d) for every area within a county for which no other council is for the time being the food and drugs authority, the council of the county.

(2) Where, apart from this subsection, the council of a non-county borough or urban district would become the food and drugs authority for that borough or district in consequence of the publication of any census, and the Minister of Health is satisfied, upon application made by the council of the county in which the borough or district is comprised, that the area or areas in respect of which the last mentioned council would in that event be the food and drugs authority are inconvenient in size, shape or situation for the efficient performance of their duties as such, he may direct that the council of the county shall, so long as the directions remain in force, continue to be the food and drugs authority for the borough or district.

(3) Where, according to the last published census for the time being, the population of any non-county borough or urban district is less than forty thousand and the Minister of Health is satisfied, upon application made by the council of that borough or district, that it is expedient that that council should continue to be or should become the food and drugs authority for the borough or district, he may, subject to the provisions of subsection (4) of this section, direct that so long as the directions remain in force that council shall continue to be or, as the case may be, shall be the food and drugs authority for the borough or district.

(4) Where according to the last published census for the time being the population of a non-county borough or urban district is less than twenty thousand, no directions shall be given under subsection (3) of this section that the council of the borough or district shall become the food and drugs authority :

Provided that such directions may be given if it appears from any estimate published by the Registrar General that the

population is for the time being more than twenty thousand and the Minister of Health thinks it expedient that the council should become the food and drugs authority in advance of the next census.

(5) Where immediately before the publication of any census the council of a non-county borough or urban district were the food and drugs authority for the borough or district (otherwise than in pursuance of directions given by the Minister of Health after the taking of the census and by virtue only of the proviso to the last foregoing subsection) and the population of the borough or district is shown by the census to be less than twenty thousand—

(a) the council shall cease to be the food and drugs authority, and

(b) any directions in force under subsection (3) of this section in respect of the borough or district shall cease to have effect.

(6) The foregoing provisions of this section shall have effect notwithstanding anything to the contrary in any charter of incorporation granted before the commencement of this Act in the case of a borough, or in any scheme confirmed, in connection with the grant of such a charter, under Part VI of the Local Government Act, 1933 or Part XI of the Municipal Corporations Act, 1882.

15.—(1) An application for directions under the last foregoing section, being—

(a) an application under subsection (2) of that section ; or

(b) an application under subsection (3) of that section for directions that a council shall continue to be a food and drugs authority,

Supplementary provisions as to food and drugs authorities.

shall be made before the first day of January next after the expiration of a period of three months from the publication of the relevant census.

(2) Any council who become or cease to be a food and drugs authority under the last foregoing section in consequence of the publication of any census shall become or cease to be such an authority on the first day of April next after the expiration of a period of six months from the publication of the census or, where an application for directions under that section in respect of the borough or district concerned is duly made, on such later date, if any, as the Minister of Health may determine.

(3) Any directions given, or having effect as if given, by the Minister of Health under the last foregoing section may at any time be revoked by the Minister as from such date as he may

determine ; but except as provided by this subsection and subsection (5) of that section, such directions shall continue in force notwithstanding the publication of any subsequent census in respect of the area to which they relate.

(4) Upon any change in the council who are the food and drugs authority for any borough or district, anything done before the date on which the change takes effect by, to or before the council who were then the food and drugs authority shall have effect for the purposes of the principal Act, the 1950 Act and this Act as if done by, to or before the council who become the food and drugs authority, and any proceedings under those Acts which on that date were pending by or against the first mentioned council may be continued accordingly by or against the second mentioned council, and shall not abate by reason of the change.

(5) For the purposes of the last foregoing section and this section, a census shall be deemed to be published in relation to any borough or district on the date on which the Registrar General, in pursuance of the Census Act, 1920, publishes a report giving the population of that borough or district, not being a report which is, or purports to be, of a provisional nature.

(6) Subject to the provisions of section thirty-six of this Act, so much of section sixty-four of the principal Act as defines " food and drugs authority " shall cease to have effect.

Enforcement
of certain
enactments and
regulations.

16.—(1) Subsection (3) of section ninety-two of the principal Act (which provides that regulations to which that section applies shall specify the authorities by whom they are to be enforced and executed) shall have effect as if the Commissioners of Customs and Excise and local authorities for the purposes of the Weights and Measures Acts, 1878 to 1936, were included among the authorities mentioned in that subsection.

(2) It shall be the duty of the Minister of Agriculture and Fisheries to secure the enforcement and execution of the following provisions, that is to say :—

- (a) subsections (2) and (3) of section thirteen of the 1950 Act, so far as those subsections apply to anything done in relation to raw milk by the producer of the milk ;
- (b) subsection (1) of section twenty-five of that Act, so far as that subsection relates to licences authorising the use of a special designation in relation to raw milk by the producer of the milk ;
- (c) Milk and Dairies Regulations and Milk (Special Designation) Regulations, except so far as an authority other than the said Minister is charged with the

enforcement and execution of the regulations in pursuance of subsection (1) of section seven or subsection (1) of section eighteen of that Act.

(3) It shall be the duty of the Minister to secure the enforcement and execution—

- (a) of any order made under section four of this Act ; and
- (b) of subsection (1) of section twenty-five of the 1950 Act, so far as that subsection relates to licences authorising the use of a special designation in relation to milk by local authorities within the meaning of the said section twenty-five, not being such licences as are mentioned in paragraph (b) of subsection (2) of this section.

(4) Without prejudice to his powers of enforcement under any provision of the principal Act, the Minister may, where he is of opinion that the general interests of consumers are affected, institute proceedings for an offence against any of the following provisions, that is to say:—

- (a) Part I of the principal Act (except so far as it relates to drugs) ;
- (b) section one of this Act (except as aforesaid) ; and
- (c) any regulations made by the Ministers under section three or section five of this Act ;

and the Board of Trade may, where they are of opinion as aforesaid, institute proceedings for any offence against regulations made by them under the said section five ; but except as otherwise expressly provided by the principal Act or this subsection, proceedings shall not be instituted by the Minister or the Board of Trade in respect of an offence under any provisions of the principal Act or this Act or of any regulations made thereunder, being provisions which it is the duty of any council to execute and enforce.

(5) Proceedings shall not be instituted by a council—

- (a) for an offence against section six of the principal Act, so far as it relates to food ;
- (b) except so far as may be otherwise provided by regulations made by the Ministers under section five of this Act, for an offence against any provisions of those regulations,

unless they have given to the Minister not less than fourteen days' notice of their intention to institute the proceedings together with a summary of the facts upon which the charges are founded.

A certificate of the Minister that the requirements of this subsection have been complied with in relation to any proceedings shall be conclusive evidence that they have been complied

with in relation thereto ; and any document purporting to be such a certificate as aforesaid and to be signed by or on behalf of the Minister shall be deemed to be such a certificate, unless the contrary is shown.

Right of
audience in
registration
proceedings.

17. A person entitled under subsection (3) of section fourteen of the principal Act or under paragraph 1 of the First Schedule to the 1950 Act to appear before any authority may appear in person or by counsel or a solicitor or any other representative, or may be accompanied by any person whom he may wish to assist him in the proceedings.

Repeal of
certain
administrative
provisions of
1950 Act.

18. The following provisions of the 1950 Act shall cease to have effect, that is to say—

(a) sections five and sixteen (which require that Milk and Dairies Regulations shall provide for the constitution of a central committee and county committees to review the working of those regulations and of Milk (Special Designation) Regulations); and

(b) section eleven (which authorises certain councils to establish milk depots).

Powers of
sampling.

19.—(1) Subject to the provisions of this section, a sampling officer may take a sample of any food, or of any substance capable of being used in the preparation of food, which appears to him to be intended for sale or to have been sold for human consumption, or is found by him on or in any premises, stall, vehicle, ship, aircraft or place which he is authorised to enter for the purposes of the execution of this Act.

(2) Without prejudice to the foregoing provision, a sampling officer—

(a) may take a sample of milk while at any dairy, while deposited for collection, or at any time before it is delivered to a consumer in pursuance of a sale by retail ;

(b) may, at the request of a person to whom any food or substance is or is to be delivered in pursuance of a contract of sale, take a sample of that food or substance in the course of or at the place of delivery.

(3) A sampling officer who under this section takes a sample of the milk of any cows at a dairy may take such steps at the dairy as may be necessary to satisfy himself that the milk is a fair sample of the milk of the cows when properly and fully milked.

(4) Except as provided by subsection (2) of this section, or with the consent of the purchaser, a sampling officer shall not take a sample of any food or substance which appears to him

to have been sold by retail while the food or substance is in the course of delivery to the purchaser, or at any time after such delivery ; and nothing in this section shall authorise a sampling officer to take a sample of any food or substance in a ship (not being a home-going ship) or in any aircraft, other than food imported as part of the cargo of that ship or aircraft.

(5) Subsections (3) and (7) of section sixty-eight of the principal Act, and in subsection (4) of that section the words from the beginning to " or consumer ", shall cease to have effect.

20.—(1) A sampling officer who purchases or takes a sample of any food, drug or substance for the purpose of analysis by a public analyst shall deal with the sample in accordance with the provisions of the First Schedule to this Act. Disposal of samples taken for analysis.

(2) The said Schedule shall apply to the purchase of samples by any person who is neither a sampling officer nor a person having the powers of a sampling officer as they apply in relation to the purchase of samples by a sampling officer ; and references therein to a sampling officer shall be construed accordingly.

(3) Any reference in the principal Act or this Act to this section shall be construed as including a reference to the said Schedule.

(4) If it appears to a sampling officer that any food, drug or substance of which he has procured a sample for the purpose of analysis by a public analyst was manufactured or put into its wrapper or container by a person (not being a person to whom one part of the sample is required to be given under this section) having his name and an address in the United Kingdom displayed on the wrapper or container, the officer shall, unless he decides not to have an analysis made, within three days of procuring the sample send to that person a notice informing him that the sample has been procured by the officer and where the sample was taken or, as the case may be, from whom it was purchased.

(5) Section seventy of the principal Act shall cease to have effect.

21.—(1) Where any person procures a sample consisting of a food, drug or substance contained in unopened containers, and the division into parts of the food, drug or substance contained in those containers is not reasonably practicable or might affect the composition or impede the proper analysis of the contents, the provisions of section twenty of this Act or of section seventy-two of the principal Act, as the case may be, with respect to the division of samples into parts shall be deemed to be complied with if the person procuring the sample divides Other provisions relating to sampling, analyses, etc.

the containers into the requisite number of lots and deals with each lot as if it were a part in the manner provided by those sections ; and references in this Act or that Act to a part of a sample shall be construed accordingly.

(2) Regulations made under section three or section five of this Act may prescribe a method of analysis for the purpose of ascertaining the presence in or absence from any food of any substance specified in the regulations, or the quantity of any such substance which is present in any food ; and in any proceedings under the principal Act—

(a) for a contravention of any regulations made under the said section three or the said section five ; or

(b) for an offence under section three or section six of the principal Act,

in respect of any food alleged to contain or not to contain any substance specified as aforesaid, or any particular quantity of such a substance, evidence of an analysis carried out by the prescribed method shall be preferred to evidence of any other analysis or test.

(3) Any certificate of the results of an analysis given by a public analyst in pursuance of section sixty-nine of the principal Act, or transmitted by the Government Chemist under section eighty-two of that Act, shall be signed by the public analyst or by or on behalf of the Government Chemist, as the case may be, but the analysis may be made by any person acting under the direction of the person by whom the certificate is signed ; and any certificate so transmitted by the Government Chemist shall be evidence of the facts stated therein unless any party to the proceedings requires that the person by whom it is signed shall be called as a witness.

(4) For subsections (3) and (4) of section sixty-nine of the principal Act there shall be substituted the following subsections :—

“(3) The public analyst shall analyse as soon as practicable any sample submitted to him in pursuance of this section but may, in the case of a sample submitted by a person not being an officer of the food and drugs authority, demand in advance the payment of such fee as may be fixed by the authority.

(4) If—

(a) the office of public analyst for the area in question is vacant, or

(b) the public analyst determines that he is for any reason unable to perform an effective analysis,

the sample shall be submitted, or, as the case may be, sent by the public analyst to whom it was originally submitted,

to the public analyst for some other area, and he shall, upon payment to him of such sum as may be agreed, analyse the sample.

(5) A public analyst who has analysed a sample shall give to the person by whom it was originally submitted a certificate specifying the result of the analysis; and any such certificate shall be in a form prescribed by regulations made by the Minister of Food and the Minister of Health acting jointly.

(6) Where a sample taken or purchased by a sampling officer has been analysed by a public analyst, any person to whom a part of the sample was given under the First Schedule to the Food and Drugs Amendment Act, 1954, shall be entitled, on payment to the authority by whose officer the sample was procured of a fee of one shilling, to be supplied with a copy of the certificate given by the public analyst under the last foregoing subsection."

(5) A local authority may, at the request of a person who has in his possession any food which has not been sold and is not intended for sale and on payment by that person of such fee, if any, as may be fixed by the authority, arrange to have the food examined.

22.—(1) An authorised officer of a council shall, on producing, if so required, some duly authenticated document showing his authority, have a right at all reasonable hours— Powers of entry.

(a) to enter any ship or aircraft for the purpose of ascertaining whether there is in the ship or aircraft any food imported as part of the cargo in contravention of the provisions of regulations made under this Act, being provisions which the council are required or empowered to enforce; and

(b) to enter any vehicle, stall or place other than premises, or any home-going ship, for any purpose for which he is empowered under section seventy-seven of the principal Act to enter premises.

(2) Subsections (2) to (4) of the said section seventy-seven (which relate to the entry of premises under the authority of a justice's warrant) shall apply in relation to any ship, aircraft, vehicle, stall or place which may be entered under the powers conferred by this section as they apply in relation to premises, and as if any reference to the occupier of premises were a reference to the master, commander or other person in charge of the ship, aircraft, vehicle, stall or place.

**Powers of
Ministers'
inspectors.**

23.—(1) The powers of sampling officers to take samples under section nineteen of this Act may be exercised also, in relation to milk—

- (a) in any case, by an inspector of the Minister ; and
- (b) for purposes connected with the enforcement of any such provisions as are described in subsection (2) of section sixteen of this Act, by an authorised officer of the Minister of Agriculture and Fisheries,

and references to a sampling officer in subsection (4) of the said section nineteen and in section twenty of this Act shall be construed accordingly.

(2) Any such inspector or officer as aforesaid shall, for the purpose—

- (a) of taking any sample of milk under this section ; or
- (b) of ascertaining whether there is or has been any contravention of the provisions of the principal Act, the Act of 1950 or this Act or of any regulations or order made thereunder, being provisions which the Minister or the Minister of Agriculture and Fisheries (as the case may be) is required or empowered to enforce,

have the like powers of entry as are exercisable, under section seventy-seven of the principal Act or section twenty-two of this Act, by an authorised officer of a council ; and in relation to any such inspector or officer the reference in subsection (2) of the said section seventy-seven to the council shall be construed as a reference to the Minister or the Minister of Agriculture and Fisheries, as the case may be.

(3) Section seventy-three of the principal Act (which provides for the inspection by officers of the Minister of Agriculture and Fisheries of premises used for the production of margarine or butter) shall cease to have effect.

**Restriction on
movement of
imported food.**

24.—(1) Without prejudice to any power of examining food which may be conferred by regulations under this Act, an authorised officer of a port health authority into whose district any food has been imported with a view to sale for human consumption may give directions to the person in possession of the food prohibiting or restricting its removal or delivery—

- (a) during any period not exceeding forty-eight hours, and
- (b) if within that period the officer so requires, until that person has notified the officer of the name of the person to whom, and the address to or at which, he proposes to send or deliver the food.

(2) The power conferred by the foregoing subsection on an authorised officer of a port health authority shall be exercisable

also, in relation to an area not forming part of a port health district, by an authorised officer of a local authority or county council.

(3) Any person who fails to comply with any direction given under subsection (1) of this section, or who in a notification thereunder knowingly makes any misstatement, shall be guilty of an offence; and subsection (3) of section seventy-eight of the principal Act (which imposes a special penalty for failure to furnish information or for furnishing false information in certain cases) shall not apply.

25. For paragraph (a) of the proviso to subsection (1) of section eighty of the principal Act (which provides a time-limit for prosecution in certain cases) there shall be substituted the following paragraph:—

“(a) where a sample has been procured under this Act, no prosecution in respect of the article or substance shall be begun after the expiration of—

(i) in the case of a sample of milk, twenty-eight days,

(ii) in any other case, two months, beginning with the date on which the sample was procured, unless the justice of the peace before whom the information is laid, on being satisfied on oath that having regard to the circumstances of the particular case it was not practicable to lay the information at an earlier date, gives a certificate to that effect; and, if the prosecution is in respect of a sample of milk, it shall not in any case be begun after the expiration of forty-two days beginning with the said date.”

26.—(1) A person guilty of an offence under the principal Act, the 1950 Act or this Act shall, unless a special penalty for that offence is provided by any of those Acts, be liable to a fine not exceeding one hundred pounds or imprisonment for a term not exceeding three months or both, and, in the case of a continuing offence, to a further fine not exceeding five pounds for each day during which the offence continues after conviction.

Penalties and
offences by
corporations.

(2) Subsection (4) of section nine of the principal Act (which provides a special penalty in respect of the sale of food unfit for human consumption) shall cease to have effect.

(3) Where an offence under the principal Act, the 1950 Act or this Act or any regulations or order made under any of those Acts which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director,

manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he as well as the body corporate shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

(4) In this section, the expression "director", in relation to any body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by the members thereof, means a member of that body corporate.

(5) The provisions of this section and (without prejudice to subsection (2) of section thirty-eight of the Interpretation Act, 1889) the repeal by this Act of section seventy-nine of the principal Act shall not affect any proceedings in respect of an offence committed before this Act comes into operation.

Contraventions
originating in
Scotland or
Northern
Ireland.

27.—(1) Where proceedings are brought against any person (hereafter in this section referred to as "the defendant") in respect of a contravention of any provisions of the principal Act, the 1950 Act or this Act, or of regulations made under any of those Acts, and it is proved—

(a) that the contravention was due to the act or default of some other person, being an act or default which took place in Scotland or Northern Ireland, and

(b) that the defendant used all due diligence to secure compliance with the said provisions,

the defendant shall, subject to the provisions of this section, be acquitted of the offence.

(2) The defendant shall not be entitled to be acquitted under this section unless within seven days from the service of the summons on him he has given notice in writing to the prosecution of his intention to rely upon the provisions of this section, specifying the name and address of the person to whose act or default he alleges that the contravention was due, and has sent a like notice to that person.

(3) The person specified in a notice served under this section shall be entitled to appear at the hearing and to give evidence, and the court may, if it thinks fit, adjourn the hearing to enable him to do so.

(4) Where it is proved that the contravention of the provisions in question was due to the act or default of some person other than the defendant, being an act or default which took place in Scotland or Northern Ireland, the court shall (whether or not the defendant is acquitted) cause notice of the proceedings to be sent to the Minister or, in the case of a contravention of regulations made by the Board of Trade, to the Board.

28.—(1) Subsection (2) of section sixty-one of the principal Act (which enables a local authority to pass a resolution determining upon the closure of private slaughterhouses in their district) shall have effect in relation to any resolution passed by a local authority under that subsection after the coming into force of this section as if for the reference therein to such date as may be fixed by the authority's resolution there were substituted a reference to the appointed date, which shall be a date fixed by the Minister if he approves the resolution.

Further provisions as to restriction of private slaughterhouses.

(2) The Minister may, in giving or withholding his approval to a resolution of a local authority under the said subsection (2) or under subsection (2) of section four of the Slaughterhouses Act, 1954 (under which a local authority may resolve to restrict in future the grant of slaughterhouses licences in their district), being a resolution passed by the authority after the coming into force of this section, direct the authority to take such steps as he may specify for informing persons interested of the effect of the resolution and his decision thereon and also, in the case of a resolution which he has approved, of the date fixed by him as the appointed date for the purposes thereof; and the authority shall comply with any such direction.

(3) It is hereby declared that a person's entitlement under subsection (1) of section five of the said Act of 1954 (which provides for compensation to be paid by a local authority on the closure of private slaughterhouses in their district) to compensation in respect of any interest of his in premises is not to be treated as taken away by any undertaking not to claim the compensation which may have been given in connection with the grant or renewal of a slaughterhouse licence as defined by that Act.

This subsection shall be deemed always to have had effect.

29.—(1) Anything required or authorised by or under this Act to be done by, to or before the Board of Trade may be done by, to or before the President of the Board, any Minister of State with duties concerning the affairs of the Board, any Secretary, Under-Secretary, or Assistant Secretary of the Board, or any person authorised in that behalf by the President.

Miscellaneous provisions relating to Board of Trade and their regulations.

In this subsection the expression "Minister of State" means such a Minister of the Crown as is referred to in section two of the Re-Election of Ministers Act, 1919, as explained by the House of Commons Disqualification (Declaration of Law) Act, 1935.

(2) Notwithstanding anything in subsection (3) of section sixty-five of the principal Act (which relates to the taking of proceedings by county councils and local authorities), no council other than a local authority for the purposes of the Weights

and Measures Acts, 1878 to 1936, shall institute proceedings for an offence against regulations made by the Board of Trade under section five of this Act.

(3) Section seventy-seven of the principal Act (which relates to powers of entry) and section twenty-two of this Act shall not apply in relation to the enforcement of regulations made by the Board of Trade under the said section five, but section ten of the Sale of Food (Weights and Measures) Act, 1926 (which confers special powers of entry and inspection on inspectors of weights and measures), shall apply as if references therein to the said Act of 1926 and to its requirements included references respectively to regulations so made as aforesaid and to the requirements of such regulations.

Miscellaneous and General

Application
to Crown.

30.—(1) Her Majesty may by Order in Council provide for the application to the Crown of such of the provisions of the principal Act, the 1950 Act and of this Act and of any regulations or order made under any of those Acts as may be specified in the Order, with such exceptions, adaptations and modifications as may be so specified.

(2) Without prejudice to the generality of the foregoing subsection, an Order under this section may make special provision for the enforcement of any provisions applied by the Order, and, where any such provision imposes a liability on a person by reason that he is the occupier or owner of premises or the owner of a business or the principal on whose behalf any transaction is carried out, the Order may make provision for determining, in a case where the premises are occupied or owned or the business is owned by the Crown or the transaction is carried out on behalf of the Crown, the person who is to be treated as so liable.

General
provisions as
to regulations,
etc.

31.—(1) Any power to make regulations or orders under this Act shall be exercisable by statutory instrument.

(2) Any statutory instrument containing regulations made under this Act, or containing an order made under section four of this Act or an Order in Council made under section thirty of this Act, shall be subject to annulment in pursuance of a resolution of either House of Parliament; and no order shall be made under section nine of this Act unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament.

(3) Regulations made under section six or section ten of this Act, and any order made under section nine of this Act, may be made so as to apply throughout England and Wales or to apply only in such area or areas as may be specified in the regulations or order.

(4) Any order made under section four or section nine of this Act, and any Order in Council made under section thirty of this Act, may be revoked or varied by a subsequent order or Order in Council made thereunder.

(5) Subsections (2) to (4) of section ninety-two of the principal Act (which contains supplementary provisions as to regulations under that Act) shall apply to any order under section four of this Act as they apply to regulations under that Act.

32. There shall be defrayed out of moneys provided by Parliament—

- (a) any expenses incurred by any Minister of the Crown or Government department in consequence of the provisions of this Act; and
- (b) any increase attributable to this Act in the moneys to be so provided under Part I of the Local Government Act, 1948, or the Local Government (Financial Provisions) (Scotland) Act, 1954.

33.—(1) In this Act, “the Minister” means the Minister of Food, “the Ministers” means the Minister of Food and the Minister of Health acting jointly, “the principal Act” means the Food and Drugs Act, 1938, and “the 1950 Act” means the Food and Drugs (Milk, Dairies and Artificial Cream) Act, 1950. Interpretation.

(2) For the purposes of this Act the supply of food for human consumption, otherwise than by sale, at, in or from any place where food is supplied in the course of a business shall be deemed to be a sale of that food, and references to purchasing and purchasers shall be construed accordingly; and where in connection with any business in the course of which food is supplied the place where food is served to the customers is different from the place where the food is consumed, both those places shall be deemed to be places in which food is sold.

(3) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say:—

“advertisement” includes any notice, circular, label, wrapper, invoice or other document, and any public announcement made orally or by any means of producing or transmitting light or sound, and “advertise” shall be construed accordingly;

“analysis” includes micro-biological assay, but no other form of biological assay, and “analyse” shall be construed accordingly;

“business” includes the undertaking of a canteen, club, school, hospital or institution, whether carried on for profit or not, and any undertaking or activity carried on by a public or local authority;

“ council ” includes a port health authority ;

“ food ” includes drink, chewing gum and other products of a like nature and use, and articles and substances used as ingredients in the preparation of food or drink or of such products, but does not include—

(a) water, live animals or birds,

(b) fodder or feeding stuffs for animals, birds or fish, or

(c) articles or substances used only as drugs ;

“ home-going ship ” means a ship plying exclusively in inland waters, or engaged exclusively in coastal excursions ; and for the purpose of this definition “ inland waters ” means any canal, river, lake, navigation or estuary, and “ coastal excursion ” means an excursion lasting not more than one day which starts and ends in Great Britain and does not involve calling at any place outside Great Britain ;

“ human consumption ” includes use in the preparation of food for human consumption ;

“ importation ” has the same meaning as it has for the purposes of the Customs and Excise Act, 1952, and “ import ” shall be construed accordingly ;

“ premises ” means a building or part of a building, and any forecourt, yard or place of storage used in connection with a building or part of a building and includes, in relation to dairies, dairy farms and the trade of dairyman or dairy farmer, any land other than buildings ;

“ preparation ”, in relation to food, includes manufacture and any form of treatment, and “ preparation for sale ” includes packaging ; and “ prepare ” and “ prepare for sale ” shall be construed accordingly ;

“ ship ” includes any boat or craft.

(4) References in this Act to any enactment shall, except so far as the context otherwise requires, be construed as references to that enactment as amended by or under any other enactment, including this Act.

(5) Subsections (2) and (3) of this section shall apply to the interpretation of the principal Act and the 1950 Act as they apply to the interpretation of this Act, but without prejudice to the provisions of section twenty-eight of the 1950 Act (which relates to the interpretation of certain provisions of Part II of that Act) :

Provided that subsection (2) of this section shall not apply to the interpretation of section fourteen of the principal Act.

(6) In sections three and six of the principal Act, except so far as those sections relate to drugs, and in subsection (1) of section fourteen of that Act, any reference to sale shall be construed as a reference to sale for human consumption.

34.—(1) This Act shall be construed as one with the principal Act and, without prejudice to the generality of the foregoing provision—

Construction
with principal
Act.

- (a) any reference in the principal Act to that Act, except any such reference in sections one hundred and one to one hundred and three, and except any reference to a specific provision thereof, shall be construed as including a reference to this Act ;
- (b) any reference in the principal Act to regulations made thereunder shall be construed as including a reference to regulations made under this Act ; and
- (c) any reference in the principal Act to Food Regulations or Bread and Flour Regulations shall be construed as a reference to regulations made under this Act.

(2) Notwithstanding anything in this section, so much of subsection (1) of section ninety-six of the principal Act as applies section three hundred and nineteen of the Public Health Act, 1936, to regulations made under the principal Act shall not apply to regulations made under this Act ; and subsection (4) of section ninety-two of the principal Act (which provides for consultation with representative organisations before making regulations under that Act) shall not apply to regulations made under this Act reproducing, without substantive modification, any regulations or order in force immediately before the commencement of this Act.

(3) Any reference in the 1950 Act to the principal Act (not being a reference to any specific provision of that Act) shall be construed as including a reference to this Act.

(4) Section one hundred of the principal Act (which relates to interpretation) shall have effect in its application to this Act as if the definition of "Minister" were omitted ; and nothing in this section shall be construed as extending the operation of section thirty-three of this Act except so far as is expressly provided by that section.

35.—(1) The provisions of the Second Schedule to this Act shall have effect for the purpose of applying to Northern Ireland certain provisions of the principal Act and this Act and for purposes connected therewith.

Application to
Northern
Ireland.

(2) Notwithstanding anything in the Government of Ireland Act, 1920, it shall be within the powers of the Parliament of Northern Ireland to enact legislation—

- (a) for purposes corresponding (with the necessary modifications) with any of the purposes of subsection (4) of section twenty of this Act or of section twenty-seven of this Act, or with the purposes of sections seventy-seven and eighty-three of the principal Act or sections sixteen, nineteen to twenty-three and twenty-six of this Act as extended by this Act to Northern Ireland ;
- (b) for repealing so much of the said Second Schedule as relates to section seventy-seven or section eighty-three of the principal Act, or to sections sixteen, nineteen to twenty-three and twenty-six of this Act.
- (c) for applying to the Crown, in matters relating to functions of the Crown in respect of Irish services within the meaning of the Government of Ireland Act, 1920, or property held on behalf of the Crown for the purposes of such services, any enactments of the Parliament of Northern Ireland passed, whether before or after the passing of this Act, for purposes similar to those of the principal Act or the 1950 Act or this Act.

(3) For the purposes of section six of the Government of Ireland Act, 1920, the Defence (Sale of Food) Regulations, 1943, shall be deemed to be made in pursuance of an Act passed before the appointed day within the meaning of that section.

Minor and consequential amendments, repeals and savings.

36.—(1) The provisions of the principal Act, the 1950 Act and the Slaughterhouses Act, 1954, specified in the Third Schedule to this Act shall have effect subject to the amendments set out in that Schedule, being minor amendments and amendments consequential on the foregoing provisions of this Act.

(2) The enactments and regulations mentioned in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) Notwithstanding anything in this Act—

- (a) any regulations made, or having effect as if made, under Part I or Part III of the principal Act and in force immediately before the commencement of this Act shall continue in force and have effect as if made under the corresponding provision of this Act, and any order made under such regulations in force as aforesaid shall continue in force accordingly, and may be further continued by regulations made under any such corresponding provision, as if made under the last mentioned regulations ;

- (b) any order made by the Minister under Regulation 2 of the Defence (Sale of Food) Regulations, 1943, and in force immediately before the commencement of this Act, shall continue in force and have effect as if contained in regulations made under section three or section five of this Act, and may be varied or revoked by such regulations accordingly ;
- (c) any order made by the Board of Trade under the said Regulation 2 and so in force shall continue in force and have effect as if contained in regulations made by the Board under section five of this Act and may be varied or revoked by such regulations accordingly ;
- (d) any direction given before the commencement of this Act under paragraph (a) or paragraph (b) of the proviso to the definition of "food and drugs authority" in section sixty-four of the principal Act shall continue in force and have effect as if given under subsection (2) or subsection (3) of section fourteen of this Act, as the case may be.

(4) Any regulations made under Part I or Part III of the principal Act and continued in force by virtue of paragraph (a) of the last foregoing subsection, and any order continued in force by virtue of paragraph (b) or paragraph (c) of that subsection, shall have effect (subject to any variation thereof by regulations under this Act) as if the regulations or order contained a provision making any contravention thereof, or failure to comply therewith, an offence under this Act.

(5) Any such order as aforesaid shall also have effect,—

- (a) in the case of an order made by the Minister, as if it specified food and drugs authorities as the authority to enforce and execute within their area the provisions of the order ; and
- (b) in the case of an order made by the Board of Trade, as if it specified local authorities for the purposes of the Weights and Measures Acts, 1878 to 1936, as the said authority.

37.—(1) This Act may be cited as the Food and Drugs Amendment Act, 1954 ; and the principal Act, the 1950 Act and this Act may be cited together as the Food and Drugs Acts, 1938 to 1954.

Short title,
citation,
commence-
ment and
extent.

(2) This Act shall come into operation on such date as may be appointed by order of the Minister :

Provided that section twenty-eight of this Act shall come into operation on the date of the passing of this Act.

(3) This Act shall not extend to Scotland.

SCHEDULES

Sections 20, 21.

FIRST SCHEDULE

PROVISIONS AS TO MANNER IN WHICH SAMPLES TAKEN OR
PURCHASED FOR ANALYSIS ARE TO BE DEALT WITH

1. The sampling officer shall forthwith divide the sample into three parts, each part to be marked and sealed or fastened up in such manner as its nature will permit, and shall—

- (a) with respect to one part of the sample comply with paragraphs 2 to 8 of this Schedule, and
- (b) deal with the remaining parts in accordance with paragraph 9 of this Schedule.

2.—(1) If the sample was purchased by the sampling officer, he shall give the part of the sample to the vendor.

(2) In relation to a sample purchased from an automatic machine this paragraph shall apply as if for the reference to the vendor there were substituted a reference—

- (a) if the name and address (being an address in England or Wales) of a person stated to be the proprietor of the machine appears on the machine, to that person;
- (b) in any other case, to the occupier of the premises on which the machine stands or to which it is affixed.

3. If the sample is of goods consigned from outside England and Wales and was taken by the sampling officer before delivery to the consignee, the officer shall give the part of the sample to the consignee.

4.—(1) This paragraph applies in relation to any sample of milk taken by the sampling officer, except to—

- (a) one in relation to which the last foregoing paragraph applies, or
- (b) any sample of cream.

(2) If the sample was taken from a container—

- (a) having a capacity greater than six pints, and
- (b) appearing to the officer to show the name and address (being an address in England or Wales) of any person as consignor of the milk,

the officer shall give the part of the sample to that person.

(3) If the sample was taken from a container—

- (a) having a capacity of six pints or less, and
- (b) appearing to the officer to show the name and address (being an address in England or Wales) of any person as the person who put the milk into the container,

the officer shall give the part of the sample to that person.

(4) If—

- (a) neither of the two foregoing sub-paragraphs apply, and
- (b) the sample was taken at a dairy,

the officer shall give the part of the sample to the occupier of the dairy.

(5) If none of the three foregoing sub-paragraphs apply, the officer shall give the part of the sample—

- (a) to the occupier of the dairy from which the milk was consigned, or
- (b) if the milk was consigned from more than one dairy, to the occupier of the dairy from which it was last consigned.

5. If—

- (a) none of the foregoing paragraphs of this Schedule apply, and
- (b) the sample was taken by the sampling officer at the request of a purchaser, or taken with the consent of a purchaser by retail,

the officer shall give the part of the sample to the vendor.

6. If—

- (a) none of the foregoing paragraphs of this Schedule apply, and
- (b) the sample was taken in transit,

the sampling officer shall give the part of the sample to the consignor.

7. If none of the foregoing paragraphs of this Schedule apply, the sampling officer shall give the part of the sample to the person appearing to be the owner of the food, drug or substance of which the sample was taken.

8. In every case to which paragraphs 2 to 7 of this Schedule apply the sampling officer shall inform the person to whom the part of the sample is given that the sample was purchased or taken for the purpose of analysis by a public analyst.

9. Of the remaining parts of the sample, the sampling officer shall, unless he decides not to have an analysis made, submit one for analysis in accordance with section sixty-nine of the principal Act, and retain the other for future comparison.

10. Any part of a sample which under this Schedule is to be given to any person may be given either by delivering it to him or to his agent or by sending it to him by post in a registered packet; but where after reasonable inquiry the sampling officer is unable to ascertain the name and address of the person to whom the part of the sample is to be given, he may, in lieu of giving the part to that person, retain it.

Section 35.

SECOND SCHEDULE

APPLICATION OF CERTAIN PROVISIONS OF PRINCIPAL ACT AND THIS
ACT TO NORTHERN IRELAND

1. Subject to the following provisions of this Schedule, the following provisions of the principal Act and this Act shall apply to Northern Ireland, that is to say:—

- (a) sections three to six of this Act so far as they relate to importation;
- (b) sections seventy-seven, eighty-three and ninety-two of the principal Act and sections sixteen, nineteen to twenty-three, twenty-six and thirty-one of this Act, subsection (4) of section thirteen of this Act, so far as they relate to regulations and orders made or to be made by the Ministers under the said sections three to six and applying to Northern Ireland or to the enforcement or execution of such regulations or orders;
- (c) so much of this Act as amends or repeals any enactment which extends to Northern Ireland and which the Parliament of Northern Ireland has not power to amend or repeal;
- (d) section thirty of this Act, except so far as it relates to functions of the Crown in respect of Irish services within the meaning of the Government of Ireland Act, 1920, or property held on behalf of the Crown for the purposes of such services, and section thirty-one of this Act so far as it relates to an Order in Council made under the said section thirty and extending to Northern Ireland.

2. In the application to Northern Ireland of any enactment referred to in the foregoing paragraph—

- (a) any reference to the Ministers shall be construed as a reference to the Secretary of State and the Minister of Food acting jointly;
- (b) references to the Board of Trade shall be omitted, and references to regulations shall be construed as referring only to regulations made by the Ministers;
- (c) any reference to a council shall be construed as, and any reference to a food and drugs authority shall be construed as including, a reference to a health authority or a port sanitary authority; and
- (d) any reference to a sampling officer shall be construed as a reference to an officer authorised in that behalf by any such authority as aforesaid or by the Minister of Food;

and the enactments specified in the first column of the following table shall, in their application to Northern Ireland, have effect subject to the additional modifications specified in relation thereto in the second column of that table.

TABLE

*Enactment**Modification*2ND SCH.
—cont.**THE PRINCIPAL ACT**

Section seventy-seven In subsection (6), for the words "the local authority under the Diseases of Animals Acts, 1894 to 1937" there shall be substituted the words "the health authority under the Diseases of Animals Acts (Northern Ireland), 1894 to 1948".

Section ninety-two ... In subsection (2), in paragraph (a), the reference to the principal Act and this Act shall include a reference to any corresponding Northern Irish enactment; in paragraph (b), the reference to any Act shall include a reference to any Northern Irish enactment and the reference to the principal Act, the 1950 Act and this Act shall include a reference to any corresponding Northern Irish enactment; in paragraph (c), the reference to a court of summary jurisdiction shall be construed as a reference to a court of summary jurisdiction constituted in accordance with the Northern Irish enactments relating to summary jurisdiction; and in paragraph (e), for the reference to subsection (1) of section twenty-six of this Act there shall be substituted a reference to the corresponding Northern Irish enactment.

In subsection (3), for the words from "county councils" to "port health authorities" there shall be substituted the words "the Commissioners of Customs and Excise, health authorities or port sanitary authorities"; and the reference to the principal Act, the 1950 Act and this Act shall be construed as a reference to any corresponding Northern Irish enactment.

Subsection (6) shall not apply.

THIS ACT

Section three ... In subsection (1), in paragraph (c), for the reference to England and Wales there shall be substituted a reference to Northern Ireland.

In subsection (4), for the reference to section ten of the principal Act there shall be substituted a reference to any corresponding Northern Irish enactment.

Section four ... In subsection (1), the words "production or" and the words "or use" shall be omitted.

	<i>Enactment</i>	<i>Modification</i>
2ND SCH. — <i>cont.</i>	THIS ACT— <i>cont.</i> Section four— <i>cont.</i>	In subsection (3), the reference to summary conviction shall be construed as a reference to conviction in accordance with the Northern Irish enactments relating to summary jurisdiction.
	Section five ...	Subsections (1), (2) and (7) shall not apply.
	Section sixteen ...	Subsections (1) and (2), paragraph (b) of subsection (3), paragraphs (a) and (b) of subsection (4) and paragraph (a) of subsection (5) shall not apply.
	Section nineteen ...	Subsections (3) and (5) shall not apply.
	Section twenty ...	Subsections (2) and (5) shall not apply.
	Section twenty-one ...	In subsection (2), the first reference to the principal Act shall be omitted. Paragraph (b) of subsection (2) and subsections (3) to (5) shall not apply.
	Section twenty-two ...	In subsection (1), in paragraph (b), the reference to any home-going ship shall be omitted.
	Section twenty-three	Subsections (1) and (3) and paragraph (a) of subsection (2) shall not apply; and in subsection (2), for the words "such inspector or officer as aforesaid" there shall be substituted the words "inspector of the Minister", and references to the Minister of Agriculture and Fisheries shall be omitted.
	Section twenty-six ...	Subsections (1), (2) and (5) shall not apply.
	Section thirty ...	In subsection (1), the reference to the principal Act, the 1950 Act, and this Act shall include a reference to any corresponding Northern Irish enactment and the reference to regulations shall be construed accordingly.
	Section thirty-one ...	Subsection (3) shall not apply.
	First Schedule ...	Sub-paragraph (2) of paragraph 2 shall not apply. In paragraphs 3 and 4, for references to England and Wales there shall be substituted references to Northern Ireland. In paragraph 9 for the words "in accordance with section sixty-nine of the principal Act" there shall be substituted the words "as if the sample had been procured under section thirteen of the Sale of Food and Drugs Act, 1875".

3. Any regulations or order made under this Act and extending to Northern Ireland shall provide for applying, in relation to offences thereunder, the provisions of section eighty of the principal Act or of any corresponding Northern Irish enactment, subject to such

modifications or adaptations (if any) as may be specified in the regulations or order.

2ND SCH.
—cont.

4. Any expenses incurred in the enforcement or execution of regulations with respect to the importation of food (including milk) in Northern Ireland—

- (a) if incurred by a health authority, shall be defrayed in like manner as expenses are defrayed under subsection (1) of section twenty-five of the Public Health and Local Government (Miscellaneous Provisions) Act (Northern Ireland), 1946, or under that section as amended or re-enacted (with or without modifications) by any Northern Irish enactment;
- (b) if incurred by a port sanitary authority, shall be defrayed in like manner as expenses are defrayed under subsection (4) of section nine of the Public Health (Ireland) Act, 1896, or under that section as amended or re-enacted (with or without modifications) by any Northern Irish enactment.

5. Any reference in the foregoing provisions of this Schedule to any Northern Irish enactment shall be construed as a reference to any enactment for the time being in force in Northern Ireland, including any enactment of the Parliament of Northern Ireland.

6. Section one of the Public Health (Regulations as to Food) Act, 1907 (under which regulations may be made as to the importation, preparation, storage and distribution of food), shall, in its application to Northern Ireland, cease to have effect so far as it relates to matters with respect to which the Parliament of Northern Ireland has no power to make laws.

THIRD SCHEDULE

Section 36

MINOR AND CONSEQUENTIAL AMENDMENTS

THE FOOD AND DRUGS ACT, 1938 (1 & 2 GEO. 6. c. 56)

Section 6

In subsection (1), after the words "sold by him" there shall be inserted the words "or displays with any food or drug exposed by him for sale"; and in subsection (1) and subsection (2) the word "otherwise" shall be omitted.

In subsection (2), after the word "given" there shall be inserted the words "or displayed".

Section 10

In subsection (1), for the words "An authorised officer of a local authority" there shall be substituted the words "An authorised officer of a council"; and in subsection (4), for the words "an officer of a local authority, the authority" there shall be substituted the words "an authorised officer of a council, the council".

Section 11

In subsection (1), for the words "The foregoing provisions relating to unsound food," there shall be substituted the words "The last two foregoing sections".

Section 12

For the words "an authorised officer of a local authority," there shall be substituted the words "an authorised officer of a council".

3RD SCH.
—cont.

The words “cart, barrow or other” shall be omitted, and in paragraph (a) of the proviso, sub-paragraph (iii) shall be omitted and for the words “examination of the contents” there shall be substituted the word “detention”.

Section 13

In subsection (6), for the words “neither this nor the next succeeding section shall apply” there shall be substituted the words “the next succeeding section shall not apply”.

Section 16

In subsection (1), the words “from a cart, barrow or other” and the words “basket, pail, tray or other” shall be omitted.

Section 19

For subsection (1) there shall be substituted the following subsection:—

“(1) No person shall sell, or offer or expose for sale, or have in his possession for the purpose of sale or of preparation for sale, for human consumption any part of, or product derived wholly or partly from, an animal which has been slaughtered in a knacker’s yard or of which the carcase has been brought into a knacker’s yard”.

Section 34

The section shall cease to have effect.

Section 35

The section shall cease to have effect.

Section 37

In subsection (1), for the words “milk-borne disease” there shall be substituted the words “disease to which this subsection applies”.

In subsections (2) and (4), for the words “milk-borne disease” there shall be substituted the words “disease communicable to human beings”.

For subsection (5) there shall be substituted the following subsection:—

“(5) Subsection (1) of this section applies to the diseases specified in Part II of the First Schedule to this Act and any other disease which the Minister of Health may by order declare to be a disease to which that subsection applies”.

Section 38

In subsection (1) and in subsection (4), for the words “a shop, stall or place” there shall be substituted the words “premises, or in a stall, vehicle or place”.

Section 58

In subsection (1), after the word “may” there shall be inserted the words “and shall if so required by the Minister of Food”.

Section 60

In subsection (2),—

(a) in paragraph (a), for the word “shall” there shall be substituted the words “may, and shall if so required by the Minister of Food”; and

- (b) in paragraph (c), for the words "treating or disposing of waste matters and refuse" there shall be substituted the words "disposing of, treating or processing waste matters, refuse or by-products".

3RD SCM.
—cont.

Section 63

The words "belonging to the Port of London Authority or the Mersey Docks and Harbour Board and" shall be omitted.

Section 65

In subsection (1), the words from "with a view" to the end of the subsection shall be omitted.

Section 68

In subsection (1), for the words "a Food and Drugs authority, or of a local authority not being a food and drugs authority" there shall be substituted the words "a council"; the words "of food and drugs" shall be omitted; and after the words "this section" there shall be inserted the words "and section nineteen of the Food and Drugs Amendment Act, 1954".

In subsection (2), for the words "any food or drug" there shall be substituted the words "any food, drug or substance capable of being used in the preparation of food".

In subsection (4), the words "the like powers" shall be omitted, after the word "thereof" there shall be inserted the words "the like powers of taking samples of milk as are conferred on a sampling officer by section nineteen of the Food and Drugs Amendment Act, 1954", and after the words "the purposes of" there shall be inserted the words "that Act and".

In subsection (5), for the words "passes in transit" there shall be substituted the words "is transported", and the words "at that dairy or while it is in transit" shall be omitted.

Subsections (8) and (9) shall cease to have effect.

Section 69

In subsection (1), after the words "food or drug" there shall be inserted the words "or substance".

In subsection (2), after the words "food or drug" there shall be inserted the words "or substance capable of being used in the preparation of food".

Section 72

In subsection (1), for the words "the last but one foregoing section" there shall be substituted the words "section twenty of the Food and Drugs Amendment Act, 1954".

Section 77

Subsection (7) shall cease to have effect.

Section 78

Throughout subsection (2), wherever the words "food or drug" occur there shall be added after those words the words "or substance" and for the words "of any food of which" there shall be substituted the words "of any article or substance of which".

At the end of the proviso to subsection (3) there shall be added the words "or as affecting any powers exercisable by virtue of paragraph (e) of subsection (2) of section ninety-two of this Act, or under that paragraph as applied by subsection (5) of section thirty-one of the Food and Drugs Amendment Act, 1954".

3RD SCH.
—cont.

Section 80

In subsection (1), after the word "thereunder" there shall be inserted the words "and any offence against an order under section four of the Food and Drugs Amendment Act, 1954".

In subsections (1), (2) and (3), after the word "article", wherever that word occurs in those subsections (except in paragraph (a) of the proviso to subsection (1)), there shall be inserted the words "or substance".

Section 81

In subsection (4), after the word "regulations" there shall be inserted the words "or byelaws".

Section 84

In subsection (1), for the words from "in the case of" to "dealt with it" there shall be substituted the words "in any proceedings for an offence under the Food and Drugs Acts, 1938 to 1954, or any regulations made under those Acts, being an offence consisting of selling, or offering, exposing or advertising for sale, or having in possession for the purpose of sale, any article or substance", and for paragraph (a) there shall be substituted the following paragraph:—

"(a) that he purchased it as being an article or substance which could lawfully be sold or otherwise dealt with as aforesaid or, as the case may be, could lawfully be so sold or dealt with under the name or description or for the purpose under or for which he sold or dealt with it, and with a written warranty to that effect; and".

In subsection (2), in paragraph (a), for the words "within seven days of the service of the summons," there shall be substituted the words "not later than three clear days before the date of the hearing."

In subsection (2), the following paragraph shall be substituted for paragraph (c):—

"(c) in the case of a prosecution in respect of a sample of milk procured from him, the defendant either—

(i) has within sixty hours after the sample was procured served such a notice as is mentioned in paragraph (2) of the Third Schedule to this Act, or

(ii) not having served such a notice, proves that he had reasonable cause to believe that such a notice would have been of no effect by reason of the fact that the milk in question was a mixture of milk produced on more than one dairy farm".

In subsection (3), after the words "the article" there shall be inserted the words "or substance".

In subsection (5), for the words "food or drug" there shall be substituted the words "article or substance" and for the words from "is of such a nature" to "contravening" there shall be substituted the words "can be sold or otherwise dealt with under that name or description by any person without contravening".

Section 85

In subsection (1), for the words "food or drug", in both places where those words occur, there shall be substituted the words "article or substance"; in subsection (2), for the words "food or drug sold

by him" there shall be substituted the words "article or substance sold by him, being an article or substance in respect of which a warranty might be pleaded under the last foregoing section".

In subsection (3), for the words "food or drug" there shall be substituted the words "article or substance".

3RD SCH.
—cont.

Section 89

After the word "Act" there shall be inserted the words "or under any regulations made under the Food and Drugs Acts, 1938 to 1954".

Section 90

In subsection (1), after the word "Act" there shall be inserted the words "or under any regulations made under the Food and Drugs Acts, 1938 to 1954".

In subsection (2), after the word "Act" there shall be inserted the words "or under any such regulations as aforesaid".

Section 91

At the end of the section there shall be added the following subsection:—

"(3) In so far as any byelaws made under Part V of this Act conflict with regulations made under this Act or the Food and Drugs Amendment Act, 1954, the regulations shall prevail."

Section 92

In subsection (2), in paragraph (f), for the words "the Minister" there shall be substituted the words "the Minister of Food and the Minister of Health acting jointly".

In subsection (2), in paragraph (a), for the words "provide for" there shall be substituted the words "modify for the purposes of the regulations any provisions of this Act or the Food and Drugs Amendment Act, 1954, relating to", and after the word "taking" there shall be inserted the word "analysis"; in paragraph (e), for the words "section seventy-nine of this Act" there shall be substituted the words "subsection (1) of section twenty-six of the Food and Drugs Amendment Act, 1954"; and after the said paragraph (e) there shall be inserted the following paragraph:—

"(ee) require persons carrying on any activity to which the regulations apply to keep and produce records and furnish returns;"

For subsection (4), there shall be substituted the following subsection:—

"(4) Before making the regulations the Minister of Food and the Minister of Health or, as the case may be, the Board of Trade, shall consult with such organisations as appear to them to be representative of interests substantially affected by the regulations".

Section 94

In subsections (1) and (2), for the words "a local authority" (wherever they occur) there shall be substituted the words "a council" and for the words "the authority" (wherever they occur) there shall be substituted the words "the council".

3RD SCH
—cont.

For subsection (3) there shall be substituted the following subsection:—

“(3) For the purposes of this section, a public analyst appointed by a food and drugs authority shall be treated as being an officer of the authority whether or not he is employed whole-time”.

Section 97

After the words “benefit of” there shall be inserted the words “his personal representative, or of”.

Section 100

In subsection (1), at the end of the definition of “animal” there shall be added the words “or fish”; in paragraph (c) of the proviso to the definition of “authorised officer”, after the words “a sanitary inspector” there shall be inserted the words “a person having such qualifications as may be prescribed by regulations made by the Minister of Food and the Minister of Health acting jointly”; in the definition of “container”, for the words “a package” there shall be substituted the words “any basket, pail, tray, package.”

In the said subsection, after the definition of “authorised officer,” there shall be inserted the following definition:—

“‘catering premises’ has the meaning assigned to it by subsection (7A) of section fourteen of this Act”.

Third Schedule

In paragraph (2), for the words “obtained by him from more than one person” there shall be substituted the words “produced on more than one dairy farm”.

In paragraph (3), for the words “proviso (a)” there shall be substituted the words “the proviso”.

THE FOOD AND DRUGS (MILK, DAIRIES AND ARTIFICIAL CREAM) ACT, 1950 (14 GEO. 6. c. 35)

Section 1

In subsection (2), for the words from “paragraph (b)” to the end of the subsection there shall be substituted the words “section three of the Food and Drugs Amendment Act, 1954”.

Section 4

For subsection (2), there shall be substituted the following subsection:—

“(2) The Ministers before making the regulations shall consult with such organisations as appear to them to be representative of interests substantially affected by the regulations.”

Section 7

In subsection (5), for the words from “the following” to the end of the subsection there shall be substituted the words “those specified in subsection (1) of section twenty-six of the Food and Drugs Amendment Act, 1954.”

In subsection (6), for the words “provide for” there shall be substituted the words “modify for the purposes of the regulations any provisions of the Food and Drugs Act, 1938, or the Food and Drugs Amendment Act, 1954, relating to”, and after the word “taking” there shall be inserted the word “analysis”.

Section 9

In subsection (4), the words from “with a view” to the end of the subsection shall be omitted.

Section 15

For subsection (2), there shall be substituted the following subsection:—

“(2) The Ministers before making such regulations shall consult with such organisations as appear to them to be representative of interests substantially affected by the regulations.”

Section 17

In subsection (1), in paragraph (a), for the words “such milk” there shall be substituted the words “the milk”.

Section 18

In subsection (1), for the words “a producer of such milk” there shall be substituted the words “the producer of the milk”.

In subsection (3), for the words from “the following” to the end of the subsection there shall be substituted the words “those specified in subsection (1) of section twenty-six of the Food and Drugs Amendment Act, 1954”.

In subsection (4), for the words “provide for” there shall be substituted the words “modify for the purposes of the regulations any provisions of the Food and Drugs Act, 1938, or the Food and Drugs Amendment Act, 1954, relating to”, and after the word “taking” there shall be inserted the word “analysis”.

Section 30

The section shall cease to have effect.

Section 31

For the words “artificial cream” there shall be substituted the words “reconstituted cream as defined by section twelve of the Food and Drugs Amendment Act, 1954”.

Section 34

In subsection (1), at the end of the definition of “animal” there shall be added the words “or fish”.

Subsection (2) shall cease to have effect.

First Schedule

In paragraph 1 for the words “they shall serve on him a notice” there shall be substituted the words “they may serve on him a notice” and for the words “seven days” there shall be substituted the words “twenty-one days”.

3RD SCH.
—cont.THE SLAUGHTERHOUSES ACT, 1954
(2 & 3 Eliz. 2. c. 42)

Section 3

In subsection (3), for the words from “section thirteen of the said Act” to “preparation and distribution of food)” there shall be substituted the words “any regulations in force under section six of the Food and Drugs Amendment Act, 1954, and made for the purposes of paragraphs (a) and (b) of subsection (2) of that section, or of any byelaws made by the authority and in force under section fifty-eight of the Food and Drugs Act, 1938.”

Section 36.

FOURTH SCHEDULE

REPEALS

Session and Chapter	Short Title	Extent of Repeal
7 Edw. 7. c. 32.	The Public Health (Regulations as to Food) Act, 1907.	In its application to Northern Ireland, section one, so far as it relates to matters with respect to which the Parliament of Northern Ireland has no power to make laws.
1 & 2 Geo. 6. c. 56.	The Food and Drugs Act, 1938.	Section one. Section two. Subsection (2) of section three. In section four, paragraphs (1) to (3), paragraph (5) and paragraph (a) of the proviso. Section five. In section six, the word “otherwise”, where that word occurs in subsections (1) and (2). Sections seven and eight. Subsection (4) of section nine. In section twelve the words “cart, barrow or other”, and sub-paragraph (iii) of paragraph (a) of the proviso. Subsections (1) to (5) of section thirteen. In subsection (1) of section sixteen the words “from a cart, barrow or other”, and the words “basket, pail, tray or other”. Sections thirty, thirty-one, thirty-two and thirty-three.

4TH SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Geo. 6. c. 56—cont.	The Food and Drugs Act, 1938—cont.	Sections thirty-four to thirty-six. Sections forty to forty-three. In section sixty-four, the words from “ and the expression ” to the end of the section. In subsection (1) of section sixty-five, paragraph (d) and the words “ with a view ” to the end of the subsection. In section sixty-eight, subsection (3), in subsection (4) the words from the beginning to “ consumer ”, and subsections (7) to (9). In section sixty-nine, in subsection (3), the words “ not exceeding one guinea ”, and the words from “ In giving ” to the end of the subsection. Section seventy. Section seventy-three. In section seventy-seven, in subsection (2), the words from “ and, where the justice is satisfied ” to “ use in the manufacture of artificial cream,” and subsection (7). Section seventy-nine. In section eighty, in paragraph (a) of the proviso to subsection (1), the words from “ and in no case ” to the end of the paragraph. Subsection (5) of section ninety-two. In section one hundred, in subsection (1), the definitions of “ artificial cream ” “ Bread and Flour Regulations ”, “ butter ”, “ food ”, “ Food and Drugs authority ”, “ Food Regulations ”, “ margarine ”, “ margarine-cheese ”, “ milk - blended butter ”, “ premises ” and “ prepare ” and “ preparation ”, and paragraph (b) of subsection (2). In section one hundred and two, in subsection (2) the words “ Part IV of this Act ” and the words from “ subject to ” to the end of paragraph (b).

4TH SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
14 Geo. 6. c. 35.	The Food and Drugs (Milk, Dairies and Artificial Cream) Act, 1950.	In section one, paragraph (k) of subsection (1). Section five. In section nine, in subsection (4), the words from "with a view" to the end of the subsection. Section eleven. Section sixteen. Sections twenty-nine and thirty. In section thirty-four, in subsection (1), the definitions of "artificial cream" "Food and Drugs authority" "premises" and "prepare", and subsection (2). Subsection (5) of section thirty-six.
—	The Defence (Sale of Food) Regulations, 1943.	The whole Regulations, except so far as they extend to Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Municipal Corporations Act, 1882	45 & 46 Vict. c. 50.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Public Health (Ireland) Act, 1896	59 & 60 Vict. c. 54.
Public Health (Regulations as to Food) Act, 1907	7 Edw. 7. c. 32.
Re-Election of Ministers Act, 1919	9 & 10 Geo. 5. c. 2.
Census Act, 1920	10 & 11 Geo. 5. c. 41.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Sale of Food (Weights and Measures) Act, 1926	16 & 17 Geo. 5. c. 63.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
House of Commons Disqualification (Declaration of Law) Act, 1935	25 & 26 Geo. 5. c. 38.
Public Health Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Food and Drugs Act, 1938	1 & 2 Geo. 6. c. 56.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Patents Act, 1949	12, 13 & 14 Geo. 6. c. 87.
Food and Drugs (Milk, Dairies and Artificial Cream) Act, 1950	14 Geo. 6. c. 35.
Customs and Excise Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 44.
Local Government (Financial Provisions) (Scotland) Act, 1954	2 & 3 Eliz. 2. c. 13.
Slaughterhouses Act, 1954	2 & 3 Eliz. 2. c. 42.